

CHAROTAR UNIVERSITY OF SCIENCE & TECHNOLOGY (CHARUSAT)
Master of Business Administration (MBA)
Post Graduate Diploma in Management (PGDM)
Semester –III University Examination – March - 2018
MB832.3 Industrial Relations

02/04/2018, Monday Time: 10:00 AM to 1:00 PM Maximum Marks: 70

Instructions:

1. This paper contains six questions, of which the last one is a case analysis.
2. All the questions are compulsory.
3. Each of the first five questions will carry 10 marks and the last case analysis will carry 20.

Q-1 Discuss the changing dynamics of Industrial Relations scenario in India brought about by the globalization and liberalization of the economy. **10**

Q-2 Case let # 1 **10**

An employee of India's public-service television broadcaster, Doordarshan, had alleged that her supervisor in Patna had sexually harassed her. She alleged that the supervisor passed offensive comments, made physical advances, and harassed her. She officially lodged a complaint in April 2015, and while her allegations were found to be true after an internal probe, no action was taken. She was transferred to another Doordarshan office. Subsequently, she approached the police but a case was not filed.

Source: <https://qz.com/931653/indias-long-history-with-sexual-harassment-at-workplaces>

In view of the above case, explain the concept and scope of Sexual Harassment Act, 2013. Also list down the rights of a woman in case of sexual harassment.

Q-3 Case let # 2 **10**

Delhi CHILDLINE, from 3 embroidery and zari factories, rescued 82 children. The children were brought from Sitamarhi, Bihar. The owner of the factory brought children to Delhi on the pretext of imparting training in embroidery; instead he employed them as laborers. At the units children were made to work for long hours for a pittance amount of Rs. 300 and very little food.

Children were produced before the CWC and referred to the Government shelter home. The police caught the perpetrator and a case has been registered against him.

Source: <http://www.childlineindia.org.in/1098/CaseofchildLabour.htm>

Explain salient provisions, positive aspects and criticism of Child Labour (Prohibition and Regulation) Act, 1986.

Q-4 Case let # 3 Chandrika vs Indian Red Cross Society 131(2006) DLT 585 **10**

Services of the petitioner were terminated while she was on maternity leave. There was no evidence to show that the petitioner had received the communication. The Industrial adjudicator concluded that the workman had no intention of joining duty with the management and the relief of reinstatement and consequential benefits was denied to her. The court held that the petitioner's services were terminated illegally and unjustifiably. The court ordered that the Petitioner be reinstated in service with continuity of service for the purposes of computation of service benefits. Back wages at the rate equivalent to 50 per cent of the basic pay was also granted. In normal circumstances, full wages would have been granted as back pay but as the organization was not for profit, this would have been difficult.

Source: <http://racolblegal.com/maternity-benefits-in-india/>

In view of the above case list down the rights of women employee as per the Maternity Benefit Act, 1961.

Q-5 Case let # 4 **10**

Suresh, a workman in the Fire and Safety Department of a manufacturing unit of a factory is addicted to alcohol. He has been warned many times for coming on duty in an inebriated state.

He has been served charge-sheet and awarded punishment. Still there was no improvement in his chronic absenteeism. He is also deeply in debt and hardly takes a couple of hundred rupees as his take home salary. Instead of resorting to progressive punishment, the management, with the help of a social worker, counseled him and also made house visits and contacted his family members. Finally, he was sent to a hospital which specialized in deaddiction. His three months of treatment in the hospital was considered as special leave with wages which were paid to the family members. The company bore the entire hospital expenses. After discharge from hospital, Suresh resumed his work. There are no more complaints about him. His performance is satisfactory. During her regular visits, the social worker received satisfactory reports about Suresh from his family members. In fact they were grateful to the company for saving their family from certain destitution.

In view of the above case-let answer the following questions:

- A. In these fast-paced times, is it possible for any management to stretch that far to reform a person?
- B. Is it obligatory on the part of the management to take care of a workman beyond his working hours? What did the management achieve by his action?

Q-6 Case let # 5

20

Foot comfort was India's largest manufacturer and marketer of footwear products. For years, Foot comfort reasonably priced, sturdy footwear had made it one of India's best known brands. The company provided employment to over 15,000 people in its manufacturing and sales operations throughout India. Despite of all its successes, Foot comfort had one problem that was its labor. The workers resorted to strikes at the slightest provocation throwing production schedules out of gear. They became perennial problems for the management.

On one occasion, the company's factory at Calcutta remained closed for four and a half months because the union was against the policy of outsourcing. Foot Comfort had started outsourcing the complete manufacture of the power range of shoes to China. The company had been outsourcing only the assembly and sewing line jobs earlier. The workers felt, the decision had resulted in lower income for them and they also feared that they could lose their jobs in future, if this trend continued.

For the first time in its history, the company remained dysfunctional for more than four months. The workers threatened the management that they would make their strike intensive and garner support from all other unions. The main demand of the trade union was that either their salaries would have to be increased or the outsourcing of the work to China had to be stopped. Management entered into a long term agreement with the workers and trade unions at Bangalore and Faridabad so that they would not be disrupting the work in future. This agreement regarding wages was valid for a year.

Despite the above agreement, a lockout was declared at Foot Comfort factory in Bangalore, with the new leadership of the union had refused to abide by the wage agreement. Following the failure of its negotiations with the union, the management decided to go in for a lock – out. The footwear manufactured in the factory could be shifted to the company's other factories. The negotiation process started again and the company got an undertaking from the factory employees that they would resume work and to phasing out of welfare schemes to cut down costs. There was dissatisfaction among the workers.

In view of the above case answer the following questions:

- A. "Maintaining good industrial relations have always been a problem for Foot comfort." Why? How do you think Foot Comfort can maintain sound industrial relations?
- B. Do you think, it is right to phase out welfare schemes to cut costs? Give reasons for your answer.